

CHAPTER 7.

An Act to grant certain duties of Customs and Inland Revenue, to alter other duties, and to amend the Law relating to Customs and Inland Revenue and the National Debt, and to make other provision for the financial arrangements of the year. [22nd July 1902.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties herein-after mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

CUSTOMS AND EXCISE.

1. There shall, as from the fifteenth day of April nineteen hundred and two, be charged, levied and paid, on the grain and other articles mentioned in the First Schedule to this Act imported into Great Britain or Ireland, the duties mentioned in that schedule, and there shall, as from the seventh day of May nineteen hundred and two, be allowed in respect of those articles the drawbacks set out in the Second Schedule to this Act. Duty on grain, &c.

2. The duty of customs now payable on tea shall continue to be charged, levied and paid until the first day of August nineteen hundred and three, on the importation thereof into Great Britain or Ireland; that is to say— Duty on tea.

Tea, the pound, sixpence.

3. The additional duties of customs on tobacco, beer and spirits imposed by sections two, three, four and five of the Finance Act, 1900 (including the increased duties imposed by section five of that Act), shall continue to be charged, levied and paid until the first day of August nineteen hundred and three, and, as regards the period for which any additional drawbacks are allowed under those sections, nineteen hundred and three shall be substituted for nineteen hundred and one. Continuance of additional customs duties and drawbacks. on tobacco, beer and spirits. 63 & 64 Vict. c. 7.

4. The additional duties of excise on beer and spirits imposed by sections six and seven of the Finance Act, 1900, shall continue to be charged, levied and paid until the first day of August nineteen hundred and three, and, as regards the period in respect of which any additional drawback is allowed under the said section Continuance of additional excise duties and drawbacks on beer and spirits.

63 & 64 Vict.
c. 7.

six, nineteen hundred and three shall be substituted for nineteen hundred and one.

Surtax and
allowance on
spirits.
44 & 45 Vict.
c. 12.

5.—(1) As from the seventeenth day of June nineteen hundred and two, the Customs duty of ten shillings and fourpence on imported spirits, imposed by section seven of the Customs and Inland Revenue Act, 1881, shall, as respects spirits other than rum and brandy, be ten shillings and fivepence, and the allowances of twopence and fourpence payable in respect of spirits under section three of the Customs and Inland Revenue Act, 1885, and section six of the Finance Act, 1895, shall be respectively threepence and fivepence.

48 & 49 Vict.
c. 51.
58 & 59 Vict.
c. 16.

(2) For the purpose of section three of the Customs and Inland Revenue Act, 1885, spirits shall be deemed to be British plain spirits, or spirits in the nature of spirits of wine, and not to be British compounded spirits, unless they are proved to the satisfaction of the Commissioners of Inland Revenue to have been distinctly altered in character by redistillation with or without the addition of flavouring matter.

Increase of
Customs duties
on glucose.

6. As from the seventeenth day of June nineteen hundred and two, three shillings and threepence shall be substituted for two shillings and ninepence, and two shillings and sixpence for two shillings, as the Customs duties on solid and liquid glucose respectively under section two of the Finance Act, 1901.

1 Edw. 7. c. 7.

Amendment of
1 Edw. 7. c. 7.
s. 10.

7. Section ten of the Finance Act, 1901, applies although the goods have undergone a process of manufacture or preparation, or have become a part or ingredient of other goods.

Power to
authorise use
of spirits
without pay-
ment of duty
in art or manu-
facture.

8.—(1) Where, in the case of any art or manufacture carried on by any person in which the use of spirits is required, it shall be proved to the satisfaction of the Commissioners of Inland Revenue that the use of methylated spirits is unsuitable or detrimental, they may, if they think fit, authorise that person to receive spirits without payment of duty for use in the art or manufacture, upon giving security to their satisfaction that he will use the spirits in the art or manufacture, and for no other purpose, and the spirits so used shall be exempt from duty:

Provided that foreign spirits may not be so received or used until the difference between the duty of customs chargeable thereon and the duty of excise chargeable on British spirits has been paid.

(2) The authority shall only be granted subject to a compliance with such regulations as the Commissioners may require the applicant to observe for the security of the revenue, and upon condition that he will, to the satisfaction of the Commissioners, if so required by them, render the spirits unpotable before and during use, and will from time to time pay any expenses that may be incurred in placing an officer in charge of his premises.

(3) If any person so authorised shall not comply with any regulation which he is required to observe, he shall, in addition to any other fine or liability, incur a fine of fifty pounds.

PART II.

STAMPS.

9. The provision of section sixty-two of the Stamp Act, 1891, limiting to ten shillings the duty on conveyances or transfers made for effectuating the appointment of a new trustee, shall apply to any conveyance or transfer for effectuating the retirement of a trustee, although no new trustee is appointed. Amendment of 54 & 55 Vict. c. 39. s. 62.

PART III.

INCOME TAX AND INHABITED HOUSE DUTY.

10.—(1) Income tax for the year beginning on the sixth day of April nineteen hundred and two shall be charged at the rate of one shilling and threepence. Income tax for 1902–1903.

(2) All such enactments relating to income tax as were in force on the fifth day of April nineteen hundred and two shall have full force and effect with respect to the duty of income tax hereby granted.

(3) The annual value of any property, which has been adopted for the purpose either of income tax under Schedules A. and B. in the Income Tax Act, 1853, or of inhabited house duty, during the year ending on the fifth day of April nineteen hundred and two, shall be taken as the annual value of such property for the same purpose during the next subsequent year; provided that this subsection— 16 & 17 Vict. c. 34.

(a) so far as respects the duty on inhabited houses in Scotland, shall be construed with the substitution of the twenty-fourth day of May for the fifth day of April; and

(b) shall not apply to the metropolis as defined by the Valuation (Metropolis) Act, 1869. 32 & 33 Vict. c. 67.

(4) Section thirty-eight of the Finance Act, 1894, (which relates to duty on dividends, &c. paid prior to the passing of the Act) shall be applied with respect to the year which commenced on the sixth day of April nineteen hundred and two, as it was applied with respect to the year which commenced on the sixth day of April one thousand eight hundred and ninety-four. 57 & 58 Vict. c. 30.

PART IV.

NATIONAL DEBT.

11.—(1) The holder of a scrip certificate for any stock which is subject to the provisions of the National Debt Act, 1870, may obtain a stock certificate under section twenty-six of that Act in like manner as a stock holder, and the Treasury may, if they think fit, dispense with any fee for the issue of stock certificates so obtained. Issue of stock certificates to holders of scrip certificates. 33 & 34 Vict. c. 71.

(2) Any stock certificate obtained as provided by this section before the passing of this Act shall be deemed to have been properly obtained in accordance with section twenty-six of the National Debt Act, 1870.